

extending the response date.

7. Plaintiff's counsel is ordered to prepare and e-file a proposed order conforming to the foregoing no later than five (5) days from the date of this hearing.

5. 9:00 AM CASE NUMBER: MSC22-00343
CASE NAME: JOEL ROBLES VS. GLOBAL SECURITY MANAGEMENT AGENCY INC A CALIFORNIA CORPORATION

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 20. Since no appearance is required, and Line 20 seeks final approval of a class action and PAGA settlement, this CMC is vacated.

Law & Motion

6. 9:00 AM CASE NUMBER: C24-00143
CASE NAME: SALVADOR MAGALLON VS. SEQUENTIAL ENVIRONMENTAL SERVICES, LLC, AN OREGON LIMITED LIABILITY COMPANY

PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AGREEMENT

FILED BY: MAGALLON, SALVADOR

TENTATIVE RULING:

Summary

Plaintiff Salvador Magallon ("Plaintiff") filed his motion for preliminary approval of the class action and PAGA litigation against Defendant Mahoney Environmental Solutions, LLC ("Defendant"), collectively referred to as the "Parties." The Motion is granted as set forth herein. No appearance is required at the August 5, 2026 hearing, provided that Plaintiff's counsel complies with the proposed order.

Background

The Parties have reached a class action and PAGA settlement to resolve claims brought by Plaintiff against Defendant. The Settlement Class is defined as: (1) non-exempt employees employed by Mahoney Environmental Solutions, LLC in California from January 1, 2024 to August 10, 2025; and (2) non-exempt employees employed by SeQuential Environmental Services, LLC (now known as Mahoney Environmental Solutions, LLC) in California from January 18, 2020 to August 10, 2025. The "Aggrieved Employee" group for PAGA purposes includes non-exempt employees employed during the PAGA Period from January 18, 2023 to August 10, 2025. Defendant estimates approximately 166 Class Members and 108 Aggrieved Employees are covered by this Settlement.

Defendant has agreed to pay a total Gross Settlement Amount of \$555,000.00 on a non-reversionary basis to settle and release all claims alleged in the operative complaint, including claims for failure to pay minimum wages and overtime, meal and rest period violations, failure to provide accurate wage

statements, failure to pay vacation wages and sick pay, failure to reimburse business expenses, failure to maintain required payroll records, waiting time penalties, unfair business practices, and PAGA penalties. The Gross Settlement Amount does not include the employer's share of payroll taxes, which Defendant will pay separately. The Settlement was reached after extensive arm's-length negotiations, including a full-day mediation with experienced mediator Daniel Turner, Esq., and represents approximately 76% of Plaintiff's estimated realistic exposure of \$727,953.60.

The Gross Settlement Amount shall be allocated as follows: (1) Class Counsel Fees Payment of up to \$185,000.00 (one-third of the Gross Settlement Amount); (2) Class Counsel Litigation Expenses Payment of up to \$20,000.00; (3) Class Representative Service Payment of up to \$10,000.00 to Plaintiff Salvador Magallon; (4) Administration Expenses Payment of up to \$7,500.00 to Phoenix Class Action Administration Solutions; and (5) PAGA Penalties of \$55,500.00, with 25% (\$13,875.00) allocated to Individual PAGA Payments to be distributed pro-rata to Aggrieved Employees and 75% (\$41,625.00) paid to the California Labor and Workforce Development Agency. If the Court approves any lesser amount for the foregoing allocations, no funds shall revert to Defendant; rather, the remainder shall be added to the Net Settlement Amount for distribution to Participating Class Members.

The Net Settlement Amount, estimated to be \$277,000.00 after the above deductions, shall be distributed to Participating Class Members as Individual Class Payments based on a workweeks allocation formula. Each Participating Class Member's Individual Class Payment shall be calculated by: (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period; and (b) multiplying that result by each Participating Class Member's individual Workweeks. Based on current estimates, the average Individual Class Payment is approximately \$1,668.67 per Class Member if no exclusions occur.

If the actual number of Workweeks during the Class Period exceeds 18,762 by more than 10% (i.e., exceeds 20,638.20 Workweeks), Defendant shall have the option to either: (i) increase the Gross Settlement Amount on a proportional basis above 10%; or (ii) elect to end the Class Period on the date the number of Workweeks reaches 20,638.20. The Settlement requires Defendant to deliver Class Data to the Administrator within fifteen days after Preliminary Approval, and the Administrator shall mail the Class Notice to all Class Members via first-class U.S. mail within fourteen days of receiving the Class Data, including Spanish translations.

Class Members shall have sixty days from the mailing of the Class Notice (plus an additional fourteen days for any re-mailed notices) to: (1) opt out of the Settlement; (2) object to the Settlement; and/or (3) challenge the number of Workweeks and/or PAGA Pay Periods attributed to them in Defendant's records. The Class Notice shall include a summary of the case and settlement terms and detailed instructions regarding these rights. The Settlement is non-reversionary, meaning all funds allocated to the Settlement shall be distributed regardless of the level of participation, with any unclaimed funds increasing distributions to Participating Class Members rather than reverting to Defendant.

The Parties seek appointment of Phoenix Class Action Administration Solutions as the Administrator to handle notice and claims administration, appointment of Plaintiff Salvador Magallon as Class Representative for settlement purposes only, and appointment of D.Law, Inc. as Class Counsel for settlement purposes only. The Parties further seek preliminary approval of the Settlement Agreement, approval of the Class Notice form, and scheduling of a Final Approval Hearing to consider the request for final approval and the applications for attorneys' fees, litigation expenses, and the class

representative service payment.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal.* (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs' counsel seek attorneys' fees of \$185,000.00 representing one third of the total gross settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a *Lodestar* cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a *Lodestar* cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$20,000 and the requested representative payment of \$10,000 for Plaintiff will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the following orders and ruling.

RULING

1. The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to

justify *preliminary* approval. The motion is **granted**.

2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on March 20, 2026 attaching a copy of this ruling. If there is a conflict in the proposed order and this ruling, the terms of this ruling shall prevail.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on August 5, 2026.

7. 9:00 AM CASE NUMBER: C24-02789

**CASE NAME: QUINITA DANIEL VS. HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION;
COMPEL ARBITRATION**

FILED BY: HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION;

TENTATIVE RULING:

This hearing is **vacated** per stipulation. See order for date of continued hearing. If this matter settles, as represented, counsel are requested to submit a proposed stipulation and order to vacate the continued hearing date. No appearance is required at the August 5, 2026 hearing.

8. 9:00 AM CASE NUMBER: C25-01976

CASE NAME: CASSIE LANCASTER VS. DISCOVERY BUILDERS, INC.

FILED BY: DISCOVERY BUILDERS, INC.

TENTATIVE RULING:

Introduction

Defendant Discovery Builders, INC. ("DBI") brings this Motion to Compel Arbitration and Stay Matter pursuant the Master Declaration For Title 7 & Dispute Resolution recorded in County of Contra Costa on June 12, 2014 ("the Master Declaration") and in accordance with California Code of Civil Procedure section 1281.2. The Motion is opposed by Plaintiffs Cassie and Christopher Lancaster ("Plaintiffs").

For the following reasons, the **Motion to Compel Arbitration is denied**.

Background Facts

This is a single-family home construction defect action arising under Civil Code sections 896 et seq.